

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING ORDINANCE NO. 3860 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. DEFINITIONS.

CITY EMPLOYEE/EMPLOYEES. Employee or employees as used in this ordinance means civilian City employees, but does not include the sworn personnel of the Cheyenne Police Department below the rank of chief or the sworn personnel of the Cheyenne Fire Department below the rank of chief.

Section 2. APPLICABILITY.

These terms and conditions of employment apply to all City employees.

Section 3. PURPOSE.

The purpose of this ordinance is to define the terms and conditions of employment for City employees. In areas of conflict between this ordinance and established federal, state or local law, the latter shall govern. This ordinance comprises the exclusive statement of City employee terms and conditions of employment. Any other agreement with or representation made to any employee by a supervisor, agent or officer of the City of Cheyenne which is in conflict with or in addition to this ordinance is specifically disclaimed by the City of Cheyenne, except for agreements entered into by and between supervisory personnel and employees establishing specific job expectations, requirements or discipline which are part of the employee's official personnel file maintained by the Human Resources Department.

Section 4. COMPENSATION.

The compensation paid to City employees is set out in the pay plan schedule, which is attached as Exhibit A and incorporated by reference. The compensation appropriate for employees will be computed with reference to the grade of the individual employee. Except for disciplinary action taken pursuant to applicable personnel policies, no employee may be reduced in pay grade. The governing body reserves the right, in its sole discretion, to modify or change pay scales. Effective July 1, 2008, City employees will receive, in addition to basic pay, longevity pay as set forth in Exhibit B, attached hereto and incorporated by reference herein. Longevity raises will be effective on the employee's anniversary month.

~~Effective July 1, 2009, and terminating June 30, 2010, the City of Cheyenne shall contribute, on a monthly basis, to the member accounts of its employees eligible to participate in the Wyoming Retirement System, an additional one and one-half percent (1.5%) of the salary, as defined in Wyo. Stat. § 9-3-402(a)(xvi), paid to each such employee.~~

Effective July 1, 2004, for any employee called to active military duty, the City of Cheyenne will compensate the difference between the employee's City base pay and military base pay, provided the military base pay is lower than the city base pay. Base pay is defined as the regular pay the employee would have received from the City had they not been called to active military duty.

Section 5. CONTINUATION OF EMPLOYMENT.

Any employee covered by this ordinance who continues their term of employment during and beyond the term of this ordinance shall be entitled to advancement in pay, subject to supervisor evaluation for pay for performance, and if the mayor and council approve funds to pay the increases. The performance appraisal form is attached as Exhibit C and incorporated by reference.

Section 6. HEALTH, MEDICAL, DENTAL AND LIFE INSURANCE.

The City will negotiate with or seek bids from qualified health insurance providers and will enter into a contract with a qualified carrier or carriers to provide City employees with a medical insurance plan, which is on file in the Human Resources Department, for fiscal year 2009-2010. City employees (including elected and appointed employees), shall contribute twelve and one-half percent (12.5%) of the cost of health insurance premiums. This payment will be a payroll deduction.

The City will maintain dental insurance on City employees pursuant to the dental plan on file in the Human Resources Department. The City will pay premiums for employees. If an employee wishes to maintain dental insurance under this plan on immediate family members, he/she may do so by paying the premium for the additional person(s) insured.

The City will pay premiums for term life insurance on all employees in accordance with the term life insurance plan on file in the Human Resources Department and City Clerk's Office.

~~Effective July 1, 2008, the City will contribute up to \$25.00, per pay period, for those employees electing to participate in the Deferred Compensation Employer Match Program.~~

Section 7. FURLOUGH DAYS.

THE MAYOR, AFTER CONSULTING WITH CITY COUNCIL LEADERSHIP, SHALL HAVE DISCRETIONARY AUTHORITY TO DECLARE FURLOUGH DAYS, IF NECESSARY, DUE TO BUDGET CONSTRAINTS.

Section 7 8. TERM.

The terms and conditions of employment set forth in this ordinance shall apply for fiscal year 2009-2010 and shall be approved as part of the fiscal year 2009-2010 budget process. This ordinance will terminate at the beginning of fiscal year 2010-2011.

Section 8 9. REPEAL OF OTHER ORDINANCES.

All other ordinances establishing specific terms and conditions of employment are repealed.

Section 9 10. SEVERABILITY.

If any clause, sentence, paragraph or part of this ordinance or application to any person or circumstance shall for any reason be adjudged by a court of competent jurisdiction to be invalid such judgment shall not affect, impair or invalidate the remainder of this agreement.

Section 10 11. This ordinance shall be in full force and effect upon passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk